

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 21-10

ORANGE AVENUE EXPRESS, INC.
Complainant,

v.

HAPAG LLOYD AG
Respondent.

RESPONSE TO ONE BANANA NORTH AMERICAN CORP.'S
MOTION FOR LEAVE TO INTERVENE

Comes now, Complainant Orange Avenue Express, Inc. (“Complainant” or “OAE”), by its undersigned attorneys, and submits its response to One Banana North American Corp.’s (“One Banana”) Motion for Leave to Intervene as follows:

One Banana seeks intervention herein pursuant to 46 CFR § 502.68(c)(2)(i) for the limited purposes of obtaining copies of discovery and examination of witnesses because common issues of fact of law and facts exist between One Banana's pending complaint against Hapag Lloyd AG (“Hapag”) now filed in Docket no. 22-03 and the claims made by OAE herein.

Under 46 CFR § 502.68(c)(2), the presiding officer may permit anyone to intervene who shows a common issue of fact or law between such person's interest in the subject matter of proceeding; that intervention would not unduly delay or broaden the scope of the proceeding,

prejudice adjudication of the rights, or be duplicative of any existing party; and that such persons at participation may be reasonably expected to assist in the development of a sound record.

As indicated by One Banana, there are similarities of fact and law between One Banana's and OAE's claims. Both concern the return of empty Hapag (reefer) containers in the Ports of Long Beach and Los Angeles. One Banana explains, that not only was it subject to detention charges because of its inability to return empty containers in the Ports of Los Angeles and Long Beach, it was also unable to secure trucking services for the delivery of its full Hapag containers that had arrived in the Ports of Los Angeles and Long Beach. OAE's claims for lost business are from the opposite side of the coin, i.e. that it was unable to return empty containers because of Hapag's practices *and* OAE was unable to provide services for full containers, such as the services One Banana sought, since OAE knew it would be unable to return empty containers subjecting itself to possible detention charges after delivery of the inbound full containers to cargo owners (for example see OAE's Complaint at paragraph 40).

OAE's and One Banana's claims are factually related, but are viewed from a different lens; OAE's experiences are as a motor carrier and One Banana had difficulties as a cargo owner. Both concern claims against Hapag under 46 USC §41102(c) for the practices and procedures Hapag has instituted in the Ports of Long Angeles and Long Beach concerning the return of empty containers and the effect it has on the inability to retrieve full Hapag containers.

OAE understands One Banana seeks access to copies of discovery served and to participate in any depositions conducted in this proceeding. OAE submits that One Banana's intervention, if granted, should be limited or modified as follows:

1. As to providing access to One Banana copies of written discovery:

A. OAE does not object to the sharing of discovery concerning the lack of locations and inability to return empty containers, PROVIDED that One Banana has a reciprocal obligation to provide similar discovery in Docket 22-03 to OAE. Such reciprocal obligation would allow for the development of a sound record to show the unjust or unreasonable practices of Hapag occurred on a normal, customary, and continuous basis (46 CFR §545.4). Unilateral access to such discovery by One Banana would not assist in the sound development of a record in Docket 21-10.

B. OAE objects to any requirement to the automatic disclosure of discovery related to the efforts, rates and identity of customers and potential customers of OAE concerning OAE's inability to accept requests to retrieve full Hapag containers. Such information would be proprietary as to OAE and its customers and potential customers. For example such information could include rates, identity of said customers and their cargo, volume of cargo and service terms and conditions. Wholesale disclosure of this information to One Banana, could potentially provide One Banana with a competitive advantage as to other cargo owners and OAE's operations. As the parties move forward in this proceeding, such information could be subject to a protective order as between OAE and Hapag.

2. With regard to One Banana's request to participate in any depositions in Docket no. 21-10:

A. OAE objects to this request. Depositions are limited in duration pursuant to 46 CFR §502.143(d)(1). As such participation by One Banana in any deposition may limit the ability of OAE to fully examine a witness for its own purposes. Further, testimony during a deposition may concern sensitive information as identified above which may be subject to a protective order. One Banana will have the opportunity to call witnesses and

conduct discovery in its proceeding at Docket No. 22-03. As such One Banana has not established any basis to be included in depositions being conducted in this proceeding and its participation in a deposition may prejudice the ability of OAE's ability to memorialize testimony in support of the claims herein and will unnecessarily expand discovery.

Date: January 28, 2022

Respectfully submitted,

Stephen M.
Uthoff

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CERTIFICATE OF SERVICE

I hereby certify that on January 28, 2022, the foregoing Response to Motion to Intervene has been served upon all interested persons and parties by electronic means pursuant to the below list.

Executed in Long Beach, California, January 28, 2022.

Stephen M. Uthoff

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Erin M. Wirth, Chief Administrative Law Judge

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